

25STCV15420 25STCV15420

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-08

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Case Number: 25STCV15420 Hearing Date: July 8, 2026 Dept: 529

THE HUMMINGBIRD RANCH, LLC vs JOHN
LEONARDO, et al.

MOTION FOR LEAVE TO AMEND COMPLAINT TO INCLUDE
ADDITIONAL CAUSES OF ACTION AND A NEW DEFENDANT

Date

of Hearing: July

8, 2026 Trial

Date: None

set

Department: 529 Case No.: 25STCV15420

Moving

Party: Plaintiffs/Cross-Defendant

The Hummingbird Ranch, LLC and Thomas Webb

Responding

Party: Defendants John Leonardo, Nancy

Leonardo and JL Construction and Design, LLC

BACKGROUND

On May 28, 2025, Plaintiff The Hummingbird Ranch, LLC filed a complaint against Defendants John Leonardo, Nancy Leonardo and JL Construction and Design, LLC for violation of Business and Professions Code section 7031, negligence, money had and received and

accounting. On November 10, 2025, the parties stipulated to add Thomas Webb as a Plaintiff to the complaint.

Defendant John Leonardo filed a cross-complaint against The Hummingbird Ranch, LLC and Thomas L. Webb for quantum meruit. On September 15, 2025, Defendant Leonardo filed a First Amended Cross-Complaint, adding a cause of action for fraud and misappropriation; Civil Code §1709 §1710 and violation of Business and Professions Code §7027.3.

[TENTATIVE]

RULING

Plaintiffs The Hummingbird Ranch, LLC and Thomas Webb' Motion for Leave to Amend Complaint to Include Additional Causes of Action and a New Defendant is GRANTED.

DISCUSSION

Plaintiffs The Hummingbird Ranch, LLC and Thomas Webb move this court for an order granting leave to file the proposed First Amended Complaint. Plaintiffs make the motion on the grounds that amendment is in the interests of justice, the proposed amendments arise from the same construction project and operative facts alleged in the original complaint, trial is not set until April 26, 2027, and Defendants will suffer no legally cognizable prejudice from permitting amendment at this stage.

"A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (CCP §473(a)(1).) The court's discretion will usually be exercised liberally to permit amendments of the pleadings. (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.)¿A complainant may obtain leave from the trial court to amend their pleading beyond the number of amendments allowed under Code of Civil Procedure section 472 (a) by filing a noticed motion. (CRC, Rule 3.1324.)¿

The motion must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations

are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (CRC, Rule 3.1324(a).) The motion must also be accompanied by a declaration stating: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (CRC, Rule 3.1324 (b).)

Plaintiffs seek to add/remove the following: (1) add AMERICAN CONTRACTORS INDEMNITY COMPANY as an additional defendant based on the contractor's license bond allegations; (2) clarify the roles of JOHN LEONARDO, NANCY LEONARDO, and JL CONSTRUCTION AND DESIGN, LLC in the subject remodeling project; (3) update the alleged direct-payment amount from \$233,680.67 to \$237,207.70; (4) add allegations concerning workers' compensation insurance and contractor licensing issues; (5) add claims for breach of contract, treble damages under Code of Civil Procedure section 1029.8, and recovery on contractor's license bond; (6) delete Accounting cause of action, and; (7) conform the pleading to facts learned and contentions developed after the original complaint was filed. Plaintiffs argue the amendments arise out of the same remodeling project, same property, same May 2024 proposal/agreement, same alleged payment history, same alleged abandonment, and same licensing issues alleged in the original complaint. The amendments, therefore, do not transform the case into a different dispute. Rather, the amendments refine and expand the pleading to address related facts, parties, and remedies. Plaintiffs further contend Defendants will not be prejudiced as trial is not set until April 26, 2027, giving Defendants ample time to respond to the amended pleading. Plaintiffs' counsel also submits a declaration as required by CRC Rule 3.1324.

In opposition, Defendants argue the motion does not satisfy the specificity that Rules of Court, rule 3.1324 requires and, to the extent the motion seeks to re-plead claims, that is a question for demurrer, not for a leave motion. First, Defendants contend the motion only identifies the proposed changes only through a narrative comparison table organized by "subject" and "effect of amendment" rather than state by page, paragraph, and line where the original allegations were or where the proposed allegations are located as required by Rule 3.1324(a)(2) and (a)(3). Defendants also contend the declaration does not state when the facts giving rise to the amended allegations were discovered, as Rule 3.1324(b)(3).

The court finds the motion and declaration substantially comply with Rules of Court, Rule 3.1324. While the page and line numbers where the changes have been made were left out, Plaintiffs have included a copy of the proposed amended pleading, includes what changes have been made, and the declaration sufficiently describes the effects of the amendment, why it is necessary and proper, and when the facts giving rise were discovered/why it was not discovered earlier.

Defendants also contend the sufficiency of the new and re-pleaded claims is a question for demurrer. This is not grounds to deny a motion for leave to amend. Defendants may demur to the amended complaint should they choose.

Based on the foregoing, the motion for leave to amend complaint is GRANTED.